

**NON COMPETITIVE MEMORANDUM
FOR SIMPLIFIED ACQUISITION ACTIONS
IAW FAR 13.106-3(b)(3)**

1. **REQUIRING AGENCY** – DOJ/Bureau of Prisons, FCI Pheonix

2. **NATURE/DESCRIPTION OF ACTION BEING APPROVED** – Sole source acquisition

3. **DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY’S NEEDS**

Agency requires comprehensive medical services provided to the inmate population. In meeting the healthcare needs of the inmate population, the BOP provides essential medical, dental, and mental health services to Federal inmates. When a medical need arises that cannot be provided by the institution medical staff, referrals are made to community-based medical providers. These services include Inpatient/Outpatient Facility and Physician services. The services will be procured by purchase orders. The proposed performance period will be from April 1, 2025 to April 30, 2025. Estimated value of requirement is \$235,527.34.

4. **IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION** – 41 U.S.C. 253; 41 U.S.C. 1901(e)

5. **DEMONSTRATION THAT THE PROPOSED CONTRACTOR’S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:**

A Request for Contract Action packet for CMS at the institution has been provided to the Field Acquisition Office (FAO). FAO is currently working towards award of a competitive acquisition. In the interim, the institution must continue to offer medical services to the inmate population. Naphcare has been the incumbent contractor for over five years and continues to provide the necessary medical services through their established network of local medical facilities and physicians.

The immediate availability of community-based health care services is critical to avoid any disruption in obtaining the necessary medical services and to ensure the orderly operation of the institution. In an effort to maintain continuity of care, the Government has determined that it is in the best interest to continue to utilize Naphcare, who can provide the required medical services without delay. Their established medical network ensures the institution’s medical needs are fulfilled.

Therefore, to maintain continuity of medical care for the diverse inmate population, continuing services with Naphcare and their network of medical service providers alleviates delay and disruption of the overall mission of basic and emergent medical care. Any delay would lead to serious injury to the Government, as it would greatly impact our medical mission, patient care and would cause operational disruptions to the inmates.

CONTRACTING OFFICER’S CERTIFICATION:

I certify this justification is accurate and complete to the best of knowledge and belief.

CELESTE WALKER  Digitally signed by CELESTE WALKER
Date: 2025.04.22 10:09:01 -07'00'

Celeste Walker, Contracting Officer